

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Tentative Ruling

**2025CUOR054875: EBRAHIM MEHR-ASSA vs EMANUEL SCOTT CATUOGNO AKA
"MANNY", et al.
07/23/2026 in Department 20
Demurrer**

The morning calendar in courtroom 20 will normally begin at 8:30 a.m. Please arrive for your hearing no later than 8:20 a.m. The door will be opened before the calendar is called.

For Zoom appearances, all counsel appearing by Zoom must follow the instructions and procedures for Courtroom 20 on the Ventura Superior Court website. IF YOU DO NOT DO SO, YOU WILL NOT BE PERMITTED TO APPEAR BY ZOOM AT THE HEARING.

With respect to the tentative ruling below, no notice of intent to appear is required. If you wish to submit on the tentative ruling, you may email Courtroom20@ventura.courts.ca.gov with all counsel copied on the email. Do not call in lieu of sending an email. If you submit on the tentative without appearing and the opposing party appears, the hearing will be conducted in your absence. If you are the moving party and do not advise the Court that you submit on the tentative, or you do not appear at the hearing, the Court may deny your motion irrespective of the tentative.

Unless stated otherwise at the hearing, if a formal order is required but not signed at the hearing, the prevailing party shall prepare a proposed order and comply with CRC 3.1312 subdivisions (a), (b), (d), and (e). The signed order shall be served on all parties and a proof of service filed with the court. A "notice of ruling" in lieu of this procedure is not authorized.

Motion: Cross-Defendant Ebrahim Mehr-Assa's Demurrer to the Cross-Complaint

Tentative: Cross-Defendant Ebrahim Mehr-Assa's demurrer to the cross-complaint is OVERRULED. Cross-Defendant shall file and serve his answer to the cross-complaint on or before August 3, 2026.

Cross-Complainants shall provide notice.

Discussion:

In ruling on a demurrer, the Court admits all material facts properly pleaded and facts that may be inferred from those that are expressly alleged, but not contentions, deductions or conclusions of fact or law. (*Sheehan v. San Francisco 49ers, Ltd.* (2009) 45 Cal.4th 992, 998; *Fox v. JAMDAT Mobile, Inc.* (2010) 185 Cal.App.4th 1068, 1078; *Cundiff v. GTE Cal., Inc.* (2002) 101 Cal.App.4th 1395, 1405.) A demurrer can be used only to challenge defects that appear on the face of the pleading under attack; or from matters outside the pleading that are judicially noticeable. (*Blank v. Kirwan* (1985) 39 Cal.3d 311.) It tests only the legal sufficiency of the complaint, not the plaintiff's ability to prove the facts alleged, or possible difficulty in making such proof. (*Beckwith v. Dahl* (2012) 205 Cal.App.4th 1039, 1061.) Courts must give the complaint a reasonable

interpretation, reading it as a whole and its parts in their context. (*Courtesy Ambulance Serv. v. Superior Court* (1992) 8 Cal.App.4th 1504, 1519.)

With limited exceptions, a plaintiff is only required to plead ultimate facts and need not plead evidentiary facts supporting the allegations of ultimate facts. A complaint is adequate as long as it apprises the defendant of the factual basis for the claim. (*Birke v. Oakwood Worldwide* (2009) 169 Cal.App.4th 1540, 1548-1549.) Each evidentiary fact that might eventually form part of the plaintiff's proof need not be alleged. (*C.A. v. Williams S. Hart Union H.S. Dist.* (2012) 53 Cal.4th 861, 872.) Less specificity in pleading the facts in the complaint is permitted when the defendant may be assumed to have knowledge of the facts at least equal, if not superior, to that possessed by the plaintiff. (*Randall v. Ditech Fin. LLC* (2018) 23 Cal.App.5th 804, 810-811; *Rutherford Holdings, LLC v. Plaza Del Rey* (2014) 223 Cal.App.4th 221, 236. A judge must overrule a demurrer if the allegations of the complaint adequately state a cause of action under any legal theory. (*Cellular Plus, Inc. v. Superior Court* (1993) 14 Cal.App.4th 1224, 1231.)

Cross-Defendant's demurrer does not seek to test the legal sufficiency of the cross-complaint, but instead seeks to contradict the allegations therein. He has also not filed and served a supporting memorandum of points and authorities as is required by California Rules of Court, rule 3.1113. The Court may construe the absence of such a memorandum "as an admission that the motion or special demurrer is not meritorious and cause for its denial and, in the case of a demurrer, as a waiver of all grounds not supported." The Court adopts this interpretation and overrules the demurrer.